

LUMBER SUPPLY CONTRACT



KNOW ALL MEN BY THESE PRESENTS:

This contract is made and entered into by and between **ANITA C. DAGAANG** of legal age, Filipino, Married and a resident of **Salvacion, Prosperidad, Agusan del Sur, Philippines**, represented by Mr. Segundino Dagaang, in his capacity as Attorney-in-fact, hereinafter known and referred to as the **SUPPLIER**.

and

J E CATUBIG LUMBER TRADING, a firm duly organized and existing by virtue of the laws of the Republic of the Philippines represented by **Mrs. Ednalyn E. Catubig**, with postal address at **Bajada, Barangay 1, San Francisco, Agusan del Sur, Philippines** herein referred to as the **BUYER**.

-WITNESSETH-

WHEREAS, the **SUPPLIER** is a private tree planter duly registered by the DENR with PTPR No. **R13-ADS-03-2024-04-05-029** located in **Salvacion, Prosperidad, Agusan del Sur** issued by the Department of Environment and Natural Resources (DENR) on April 05, 2024 and has the capacity to supply as indicated below, to wit:

Inventoried Volume (cu.m.)		Volume to be Supplied to J E Catubig Lumber Trading (bd.ft./cu.m.)	Volume to be Supplied to J E Catubig Lumber Trading (bd.ft./cu.m.)	Available Balance (cu.m.)
Gmelina	87.85	5,000 bd.ft./11.79 cu.m.	15,000 bdft. / 35.37 cu.m.	40.69 cu.m.

WHEREAS, the **BUYER** will be engaging in the operation of Lumber Dealing and has not violated pertinent DENR laws, rules and regulations.

WHEREAS, the **SUPPLIER** is willing to sell and supply chainsaw-cut lumber with total volume of 35.37 cubic meters (**15,000 bd.ft.**) of **Gmelina** species as may be required or necessary for the latter's Lumber Dealer business and the **BUYER** is willing to purchase from the supplier such available volume.

NOW, THEREFORE, for and in consideration of the premises mentioned hereinabove, the parties here agree to enter into this **LUMBER SUPPLY CONTRACT** where the supplier shall sell and deliver to the **BUYER** chainsaw-cut lumber from its approved PTPR under the following terms and conditions.

1. That the deliveries of chainsaw-cut lumber under this contract shall be covered by the necessary supporting documents from the DENR and other Government agencies certifying as to the legality of the source;
2. That the quality of chainsaw-cut lumber to be supplied shall be scaled by the **SUPPLIER** at the area for the determination of final grading as basis for the pricing and same shall be graded and rescaled by the **BUYER** upon delivery;
3. The **SUPPLIER** shall not be held liable and/or responsible for any omission and/or delay in the performance of its obligation under this contract caused by or arising from **FORCE MAJEURE** or **ACTS OF GOD** and other fortuitous events.

THAT both parties further agreed that:

1. The approving officer shall be free from any liability, criminal and/or otherwise in the event of breach of contract between the two (2) contracting parties;
2. The DENR shall not be made a party of any breach arising from non-performance of the obligations stipulated in the contract by any of the contracting parties.

3. Any proven violations against pertinent DENR laws, rules and regulations committed by either of the contracting parties shall be sufficient cause for the cancellation of this contract.
4. This agreement shall be subject to other pertinent DENR laws, rules and regulations governing that matter.
5. The validity of this agreement shall be one (1) year effective immediately upon its approval by the DENR and automatically deemed earlier terminated when the volume contracted are exhausted, whichever comes first. It is being understood that either party may withdraw from it and declare it cancelled and of no effect within thirty (30) days written notice on the other party and that the DENR Region 13 shall also be notified.

IN WITNESS WHEREOF, the parties have hereunto affixed their signatures this ____ day of August 2025 at Bayugan City, Agusan del Sur, Mindanao, Philippines.

**ANITA C. DAGAANG/
SEGUNDINO DAGAANG**

PTPR Holder/Supplier

By:

SEGUNDO BAGAANG *1/2*
Attorney-in-fact

J E CATUBIG LUMBER TRADING

Buyer

By:

EDNALYN E. CATUBIG
Proprietor

Witnesses:

SARAH P. PAREJO
CENTRO Officer

NORMAN A. ASUGAN
OIC, PENR Officer

MARITESS M. OCAMPO
OIC, REGIONAL EXECUTIVE DIRECTOR

Republic of the Philippines)
Province of Agusan del Sur : S.S
City of Bayugan)



BEFORE ME, at the Bayugan City, Philippines this _____ day of _____, 2025 personally appeared Segundino Dagaang with Community Tax Certificate No. 27834681 issued on _____ at _____ and Ednalyn E. Catubig with Community Tax Certificate No. _____ issued on 1-9-25 at Brgy 1 SFADS both known to me that the same is their free and voluntary deed.

This instrument consists of two (2) pages including this page wherein acknowledgment is written and has been signed by the parties and their instruments witness.

WITNESS MY HAND AND SEAL at the place and date first above written.

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Series of 2025

ATTY. FERNANDO M.M. BANOSA
NO FOR PUBLIC
UNTIL DECEMBER 31, 2025
PTR NO. 1279587/3000 2025 AT HAYUGAN CITY
IRP NO. 492301201 2025 AT AGSAN DEL SUR
ROLL NO. 49024
101 LAMPAN ST. 1ST. FLOOR, DAVAO CITY
101 LAMPAN ST. 1ST. FLOOR, DAVAO CITY

Note: The actual supply/delivery under this contract shall only be allowed if both parties have valid permits /authorities issued by the DENR. Further, the volume of Gmelina lumbers allowed under this contract is only 35.37 cu.m. or an equivalent of 7,498.44 bd.ft. in lumber form, with a maximum thickness of five (5) inches.